



POLICE DEPARTMENT CITY OF NEW YORK

January 20, 2017

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Woody Williams  
Tax Registry No. 937743  
Police Service Area 2  
Disciplinary Case No. 2015-14387  
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**Charges and Specifications:**

1. Said Police Officer Woody Williams, while on-duty and assigned to the 110th Precinct, on or about September 27, 2015, within the confines of the 110th Precinct, after having been directed by New York City Police Captain Gregory Mackie to cease using his cell phone and resume his duties, did fail and neglect to comply with said order.  
P.G. 203-03, Page 1, Paragraph 2 – COMPLIANCE WITH ORDERS  
P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
2. Said Police Officer Woody Williams, while on-duty and assigned to the 110th Precinct, on or about September 27, 2015, within the confines of the 110th Precinct, was discourteous to New York City Captain Gregory Mackie, to wit: said Police Officer Williams raised his voice in a loud and aggressive manner.  
P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT  
P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT
3. Said Police Officer Woody Williams, while on-duty and assigned to the 110th Precinct, on or about September 27, 2015, within the confines of the 110th Precinct, was discourteous to Deputy Inspector Kevin Maloney, to wit: said Police Officer Williams raised his voice in a loud and aggressive manner and refused to acknowledge Deputy Inspector Kevin Maloney's presence.  
P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT  
P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT
4. Said Police Officer Woody Williams, while on-duty and assigned to the 110th Precinct, on or about September 27, 2015, within the confines of the 110th Precinct, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer Williams did fail and neglect to maintain his Activity Log (PD 112-145).  
P.G. 212-08, Page 1, Paragraph 1 – ACTIVITY LOGS

5. Said Police Officer Woody Williams, while on-duty and assigned to the 110th Precinct, on or about September 27, 2015, within the confines of the 110th Precinct, did fail and neglect to maintain a clean appearance, in that Police Officer Williams was unshaven while in uniform.

P.G. 203-07, Page 1, Paragraph 10 – PERFORMANCE ON DUTY PERSONAL APPEARANCE

**Appearances:**

For the Department: Samuel Yee, Esq.  
Department Advocate's Office  
One Police Plaza, 4th Floor  
New York, NY 10038

For Respondent: John P. Tynan, Esq.  
Worth, Longworth & London LLP  
111 John Street, Suite 640  
New York, NY 10038

**Hearing Dates:**

October 5 & 28, 2016

**Decision:**

Not Guilty: Specification Nos. 1 & 2  
Guilty: Specification Nos. 4 & 5  
Guilty in Part: Specification No. 3

**Trial Commissioner:**

ADCT David S. Weisel

## REPORT AND RECOMMENDATION

The above-named member of the Department appeared before the Court on October 5 and October 28, 2016. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Captain Gregory Mackie, Sergeant Michelle Pacheco, Captain Ralph Forgione, and Inspector Kevin Maloney as witnesses. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

## DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, the Court finds Respondent Guilty of Specification Nos. 4 and 5, Guilty in Part of Specification No. 3, and Not Guilty of Specification Nos. 1 and 2.

## FINDINGS AND ANALYSIS

This case arises out of multiple interactions Respondent had with Captain Gregory Mackie, who was working as the patrol duty captain for Queens North on Sunday, September 27, 2015. Respondent, who had been late reporting for duty, was assigned to stationhouse security and was posted outside. Though the exact nature of the exchanges between Respondent and Mackie are disputed, the following facts are uncontested. Respondent first interacted with Mackie around 0900 hours when Mackie arrived at the stationhouse and passed Respondent on his way inside. Following that interaction, Mackie proceeded into the stationhouse where he directed the desk officer, Sergeant Michelle Pacheco, to enter Respondent in the minor violations log for using his cell phone while on post. After inspecting the command log and the prisoner cells, Mackie exited the stationhouse and asked Respondent for his memo book (Dept. Ex. 2). Respondent attempted to make an entry, as he had not yet noted that he was on post, and Mackie directed him inside.

In the presence of Pacheco, Mackie asked Respondent why his memo book was not updated. Mackie then questioned whether Respondent had a note exempting him from shaving. Respondent stated that he did not have the note from the Medical Division on him. In actuality, the note had expired four days prior (Dept. Ex. 1). Mackie directed Pacheco to get him "green paper" to write a command discipline and sent Respondent back to his post outside.

As Mackie exited the stationhouse, there was a third encounter culminating in Respondent accusing Mackie of calling him "a fucking nigger." Mackie denied this allegation

immediately after Respondent made it and has continued to deny making any such comment. Mackie notified the Office of Equal Employment Opportunity and his supervisors, and an investigation commenced immediately. Respondent and Pacheco both sat for official Department interviews. Ultimately, the Queens North Duty Inspector, Deputy Inspector Kevin Maloney, after conferring with Assistant Chief Diana Pizzuti, the borough commander, informed Respondent that he was suspended for failing to follow a direct order and discourtesy to a supervisor. Respondent later filed a lawsuit against the City, Mackie and Maloney.

Contrasting accounts of what transpired were presented at trial by Respondent and Mackie. Mackie contended that Respondent's glib and discourteous tone caused the issue to escalate from a minor violation to a more serious disciplinary matter. Conversely, Respondent maintained he never was discourteous and suggested that Mackie presented a false narrative to shift the focus of the investigation away from his using a racial slur against Respondent.

Mackie recounted that as he pulled up to the 110 Precinct, he observed Respondent standing in front of the stationhouse, looking down and holding what appeared to be a cell phone at chest level and typing with his thumbs. Mackie noted that Respondent was looking down at his phone for approximately one minute. The captain's view was not obstructed in any way. Mackie approached and directed Respondent to be more attentive to his surroundings and put away his cell phone while on post. Respondent looked up at him briefly, said "okay," and then looked back down at the phone. Mackie acquiesced on cross examination that he did not say anything further to Respondent and proceeded into the stationhouse (Tr. 159-63, 185-87).

Mackie entered the stationhouse, where he inspected the prisoner cells and signed the command log and prisoner roster. He then pulled Pacheco aside, informed her as to Respondent's inattentiveness to his post, and directed her to place him in the minor violations log for using his cell phone (Tr. 163).

Mackie then exited the stationhouse and asked Respondent for his memo book.

Respondent took it out of his back pocket and, instead of handing it to Mackie, began to write in it for approximately 20 seconds. Though Mackie could not discern what Respondent was writing, he was able to see Respondent flip a page and move his pen. Mackie did not recall telling Respondent to stop writing, but "politely" asked him to enter the stationhouse. Mackie agreed that stationhouse security was an important post but felt the situation was important enough to take Respondent off post briefly. In the memo book, Respondent had failed to note the time he went on post (Tr. 164-65, 189-92, 194-98, 202).

Inside the executive officer's office, with Pacheco present, Mackie recounted that he asked Respondent why his memo book was not updated. In what Mackie characterized as a terse and indifferent tone, Respondent said he had not had time. During this conversation, Mackie noticed "visible stubble" on Respondent's chin and inquired as to why he was unshaven and whether he had a medical exception note. Respondent indicated that he had a note but it was not on his person. Later, Mackie learned that the note had expired four days prior (Tr. 165-66, 201-02, 204-05).

By this point, Mackie testified, Respondent was "getting agitated." Mackie asked Pacheco to retrieve paper to prepare command disciplines. Respondent got "very loud and irate," telling Mackie, "You can do what you want, Captain, I don't care, I've been jammed up before, I've been modified before, you can write your CD's." Mackie found Respondent's demeanor and tone to be "arrogant, insubordinate, defiant [and] discourteous." Mackie told Respondent that he would be receiving two command disciplines, for the cell phone and the memo book. He noted in Respondent's memo book that he had been advised of the violations and instructed him to return to post (Tr. 167-69, 176-77).

Because there was no typewriter to prepare the command disciplines, Mackie told Pacheco he would prepare them at his own command and return later. He told Pacheco to tell Respondent that he was lucky he was not being suspended. As Mackie exited the precinct, he observed Respondent standing to his left. They did not engage in any conversation. Mackie confirmed Respondent was not on his phone at that time (Tr. 169-70, 222, 238-39).

As Mackie was unlocking his car, he heard Respondent say, "I better call OEE0. The duty captain called me . . . a fucking nigger." Mackie turned to look at Respondent and saw that he was holding his cell phone to his right ear as he made this statement. In disbelief, he asked Respondent to clarify what he had just said. Respondent yelled, "[Y]ou heard me right, Captain, you called me a fucking nigger." Mackie told Respondent that he had said no such thing. By this point, Pacheco had come outside and was standing near Respondent. Respondent allegedly continued, "You can do whatever you want. I'll go through my channels on my end." Mackie ordered Respondent inside the stationhouse to commence an investigation. He also informed OEE0, the Internal Affairs Bureau, and two of his superiors. Mackie testified that he never called Respondent or anyone else this slur (Tr. 170-72, 225-26, 237-40, 245).

Mackie believed that Respondent again had disobeyed his order to stop using his phone, regardless of whether he was consulting an attorney, union representative or OEE0. He felt that this repeated disregard for his order to stay off the phone elevated the misconduct beyond a command discipline. Mackie insisted that the racial allegation had nothing to do with Respondent's eventual suspension. He further agreed that he still was a probationary captain on the date in question. Mackie insisted that this too had no effect on his dealings with Respondent (Tr. 182-83, 210-11, 229-32, 236, 244-45).

Mackie was informally interviewed by Maloney, who asked him if he had used the slur. He denied doing so. Mackie was present when Maloney informed Respondent that he was

suspended. He remembered that Respondent was chewing gum and avoiding eye contact with the inspector. Mackie asserted that Respondent was evasive about the location of his firearms and had to be asked multiple times. When Respondent indicated that the location of his firearms was listed on his force record, his tone was disrespectful, arrogant and belligerent. Mackie conceded that Respondent did not use profanity (Tr. 174-78, 210-13, 243-44).

Maloney and Pacheco corroborated parts of Mackie's testimony. Pacheco testified about the events leading up to Respondent's suspension. She testified that prior to Mackie's arrival, there were no issues with Respondent – she did not see him leave his post and the video surveillance of the entrance to the stationhouse did not show him using his phone. In fact, nothing caught her attention. Pacheco conceded, however, that she was not looking at the TV screen when Mackie approached Respondent and did not see Mackie until he actually entered the stationhouse (Tr. 13, 28-30).

Pacheco recalled that when Mackie entered the stationhouse, appearing "annoyed," he informed Pacheco that he wanted her to put Respondent in the minor violations log for using his cell phone. Pacheco testified that in her three years as a supervisor, she never had been directed by a duty captain to place someone in the minor violations log and never herself had documented any officer for using his cell phone. Still, she complied with what she perceived as an order from a superior officer. Mackie then scratched the command log and exited the stationhouse. Pacheco was not looking at the TV monitor at that moment and did not see what transpired when Mackie went outside (Tr. 14-16, 32-39).

Pacheco recounted that Mackie, looking agitated, returned a moment later with Respondent. He gestured for her to follow him and Respondent into a nearby office and subsequently stated that Respondent's memo book was not up to date. He further pointed out that Respondent was not clean-shaven and Respondent acknowledged that he had not shaved.

Mackie then asked if he had "a note" and Respondent answered affirmatively but said that he did not have it with him. Pacheco acquiesced that she had not noticed any beard overgrowth when Respondent reported for duty or prior to Mackie drawing her attention to it. She also recalled telling Mackie that the command's executive officer, Captain Ralph Forgione, was working that day. Pacheco indicated at trial that she meant this as a way of smoothing things over but Mackie did not acknowledge her comment (Tr. 16-18, 27, 40-44, 51, 59-60, 91).

Pacheco characterized Respondent's demeanor as defensive, giving her the impression that he did not feel Mackie should have been questioning him. Though Respondent did not yell at Mackie, Pacheco felt he "had an attitude" and was "sort of disrespectful." Still, she agreed that Respondent did not ignore any of Mackie's questions and he did not raise his voice or refuse orders (Tr. 19-20, 48-50, 57-58, 83).

Mackie then directed Pacheco to get "green paper," the kind used to prepare command disciplines by typewriter. He sent Respondent back to his post and asked Pacheco for Respondent's tax number. Because Pacheco could not find an available typewriter due to their obsolescence at that precinct, Mackie said that he would go back to his precinct, type them up and then return. Pacheco explained at trial that she currently issued CDs on the computer, rather than using a typewriter, but did not recall Mackie bringing up this option. As Mackie left, he told Pacheco to let Respondent know he was lucky he had not been suspended (Tr. 19-21, 57-58, 86-88, 93-95).

Once Mackie was no longer visible on the closed circuit television, Pacheco exited the stationhouse to find out from Respondent what was going on. When she walked outside, Mackie and Respondent were engaged in a conversation. She recalled, from a few feet away, hearing Respondent, in a normal tone, telling Mackie, "I heard what you said, you called me a nigger."



She remembered Mackie looking "shocked" and, in an agitated tone, denying Respondent's allegation. She did not see Respondent's phone in his hand (Tr. 22-25, 62-68).

Pacheco then called Forgione and asked him to return to the stationhouse, informing him that Respondent was alleging Mackie used a racial slur against him. At her official Department interview on the same day, Pacheco was asked questions by Maloney, Forgione and Mackie (Tr. 69-72, 79-80, 92).

Also testifying at trial, Maloney explained that as the Queens North Duty Inspector, his tasks were to respond to any significant incidents that occurred within the borough and visit various commands to verify operations were functioning smoothly. At approximately 1030 hours, he responded regarding the incident involving Mackie and Respondent. Maloney informally interviewed Mackie and then conducted official interviews of Respondent and Pacheco. Mackie was permitted to sit in on Pacheco's interview as the duty captain, even though he was the complainant in the incident. Ultimately, after consulting with Assistant Chief Pizzuti, the borough commander, and receiving her approval for his recommendation that Respondent be suspended, Maloney informed Respondent he was suspended from duty for failing to follow a direct order not to use his cell phone. Like Mackie, Maloney insisted that the decision to suspend Respondent had nothing to do with the racial allegation against Mackie, although Pizzuti was aware of it (Tr. 100-05, 114-20, 122).

According to Maloney, Respondent did not initially answer his question about the location of his firearms but eventually responded, "[Y]ou know where they are, they're on my ten card." Maloney told Respondent that he needed to provide the physical location of the firearms. When Respondent answered that he thought his delegate had them, Maloney asked if Respondent knew that for a fact. The delegate tried to answer for Respondent but Maloney directed the delegate to allow Respondent to answer himself. Maloney testified that Respondent

was "evasive in refusing to answer questions," estimating that he posed the question half a dozen times before he got an appropriate response. Maloney further recounted that Respondent seemed annoyed with the questioning. He characterized his tone as dismissive and disrespectful, but not as yelling or even particularly loud (Tr. 106-09, 133-35).

Because of Respondent's allegation, Maloney contacted OEE0, and also wrote the phone number for OEE0 on a printout of the Patrol Guide procedure for reporting complaints, but Respondent refused to take this paper. Respondent indicated, in a dismissive and upset way, to Maloney that he was upset about his suspension and how the situation was handled. Maloney felt that this was an inappropriate comment coming from a subordinate officer (Tr. 109-12, 138).

Captain Ralph Forgione, the executive officer, testified about the investigation as well as his interaction with Respondent earlier in the morning. As Forgione was leaving for a detail, he saw Respondent posted outside the stationhouse. He had no concerns about Respondent's appearance or his attentiveness to his post. Forgione recalled telling him that he did not have to stand directly in front of the stationhouse the whole time and could go in and out of the vestibule, possibly to check on that day's football games (Tr. 256-58, 266-73).

An hour later, upon returning from the detail, Forgione again encountered Respondent at the entrance. Forgione reiterated that Respondent did not need to stand "like a statue" outside the stationhouse. At this point, Respondent told him, "I have captains that want to give me CD's . . . that say they want to suspend me." Forgione responded, "I'm your XO. If you want to go in and out of the stationhouse, I'm here, as long as you're visible." As he was about to go inside, Pacheco called his cell phone and advised him of the issue between Respondent and Mackie. Forgione started to ask Respondent what happened, but an upset Mackie called, telling him that he was needed at the stationhouse (Tr. 258-60, 272-75).

Mackie still was upset when Forgione met him in the stationhouse and wanted Respondent suspended for discourtesy. Forgione did not recall if Mackie mentioned the alleged racial slur in their initial conversation. Forgione went back outside to speak with Respondent, who denied being discourteous or using his cell phone, and alleged that Mackie had called him a "fucking nigger." Forgione then left Respondent at his post and spoke to Mackie again, who he recalled had calmed down by this point. Mackie recounted his version of events to Forgione and denied Respondent's allegation (Tr. 277-79, 281-88).

Forgione recalled that when Maloney advised Respondent he was suspended, Respondent was chewing gum, trying to "stare down" the inspector, and evading questions directed to him. He also refused to take the paper that Maloney attempted to hand him and, in an upset way, stated he disagreed with his suspension. Forgione considered Respondent's behavior to be "one hundred percent discourteous" (Tr. 261-66).

Respondent denied inattentiveness to his post or any discourtesy on his part. Specifically, Respondent denied using his cell phone to make calls, send text messages or access the Internet while on post (Tr. 309; Respt. Ex. A, cell phone records).

Respondent admitted that he had arrived late for work that day. He filled out the necessary paperwork and was assigned to stationhouse security. Soon after taking his post, he spoke with Forgione, discussing football. Forgione told him that he could go into the stationhouse if the weather got uncomfortable or if he wanted to see a bit of a football game that afternoon (there was a television in the muster room, a few feet from the entrance). Respondent "insisted" on staying outside, however, because he was new to the command and wanted to make a good impression (Tr. 307-08, 349-53).

Approximately a half hour later, Respondent saw Mackie exit his Department vehicle and walk toward the precinct. He recognized him as a supervisor based on his uniform but never had

seen him before. Respondent testified that he greeted Mackie, who did not greet him back. He thought that Mackie was going to inspect his uniform or his memo book. Reaching into his pocket, Respondent first pulled out his phone. His phone was in his right front pocket where he typically kept his memo book. Respondent explained at trial that he had been ordered to wear certain pants due to a detail for the papal visit then occurring in the City, and these pants had fewer pockets than normal. Mackie told him not to be on the phone and Respondent answered, "Yes, sir." He put his phone away and Mackie went into the stationhouse (Tr. 310, 317-20, 353-54).

Respondent estimated that Mackie returned two minutes later, asking for his memo book. Respondent tried to quickly write that he was on post, but before he could do so, Mackie directed him into the stationhouse. He testified that Mackie seemed agitated or upset (Tr. 320-23).

Mackie asked Respondent about his memo book, and then in Pacheco's presence asked Respondent if he had "a note." Respondent admitted that he realized Mackie meant a note from the Medical Division exempting him from shaving. Respondent answered that he did not have it on him. He specified that Mackie never actually asked if he had shaved. Respondent testified that he has a medical condition that causes him to break out if he shaves daily and noted he has obtained a medical exception note annually, but it had expired a few days before the incident. He testified that he shaved with an electric razor that morning, which caused fewer skin issues but did not get as close a shave. After indicating that Respondent would be receiving CDs, and ignoring Pacheco's hint that Forgione was working that day, Mackie sent Respondent back to his post (Tr. 305-06, 323-24, 337, 339-40, 355-57).

Minutes later, Mackie exited the precinct. As he passed Respondent, Respondent contended that he heard him say "fucking nigger." Unable to believe what he had heard, Respondent asked Mackie, "[D]id you just call me that?" Mackie responded, "[W]hat did you

just say?" Respondent replied, "I heard you, Captain, I heard you called me a fucking nigger." At this point, Respondent noticed Pacheco in the doorway. Without saying anything, she and Mackie walked inside (Tr. 325-26, 340).

Forgione returned to the command and asked Respondent what had transpired. According to Respondent, Forgione told him, "I never seen Mackie this mad before. He is talking about modifying or suspending you." Respondent informed him that Mackie had used a slur toward him and Forgione said he would "see what he can do." Following his official interview, Respondent was informed by Maloney that he was suspended. Though he could not believe what was happening, he did not raise his voice. He recalled that when he was asked about his firearm, he indicated his delegate had already taken possession of it (Tr. 327-28, 332-33).

Respondent never called OEE0 or IAB directly, but OEE0 contacted him the following day. He also sent an email to the Police Commissioner and the Mayor at some point during the week that followed. Respondent's lawsuit against Mackie, Maloney and the City still is pending (Tr. 333-34, 346-49).<sup>1</sup>

### **Opinion**

The Court did not find Mackie to be a credible witness. At trial, he was highly defensive and was unable or unwilling to answer questions directly. At one point, very early in cross examination, the Court had to interrupt the testimony after Mackie started shouting at Respondent's counsel and direct the Advocate to speak to him in the hallway. Some of his undisputed conduct during the incident itself was bizarre, like insisting on preparing the CDs

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<sup>1</sup> According to counsel, Respondent's lawsuit included two federal claims against the City, Mackie and Maloney, one of which he subsequently withdrew. The Court granted summary judgment, dismissing the other federal claim (retaliation for imposing unlawful discrimination) on the grounds that state court would be the more appropriate forum. The Court then declined to accept supplemental jurisdiction for the remaining four causes of action, which were state law claims (Tr. 152-54).

himself at his command because there was no typewriter available, instead of simply allowing Pacheco or her staff to prepare them online. All of this raises serious questions about his ability to describe his interactions with Respondent accurately.

At the same time, as the person who faces disciplinary sanction, Respondent's motive to testify in a manner that absolves him of any wrongdoing is great. His assertions that he did absolutely nothing wrong and was in no way discourteous strains credulity given that this is a situation that quickly escalated from entry into the minor violations log to a suspension.

**Specification No. 1 – Failure to Comply with Order to Stop Using Cell Phone**

On this charge, Respondent and Mackie's accounts are markedly different. Respondent denied using his cell phone for any purpose while on post. He explained that as Mackie approached, he thought he might ask to inspect or sign his memo book so he removed it from his pocket, also removing his phone in the process. Respondent insisted that he complied immediately with Mackie's directive to put the phone away. Conversely, Mackie alleged that he observed Respondent typing on his phone for close to a minute and that when he ordered him to put it away, Respondent acknowledged the order but then went right back to looking at his phone.

There are no additional witnesses to corroborate either account. Respondent asserted that his cell phone records (Ex. A) show no voice, messaging or data activity during the relevant time period. The records, however, were uncertified and contain no legend or explanation indicating what exactly they encompass. Still, at worst, they appear to show no call activity during the time in question.

There are of course many ways one can use a smartphone that would not necessarily be reflected in cell phone records from the carrier. The tribunal finds, nevertheless, that the Department has not met its burden in proving Respondent disobeyed Mackie's order to cease

using his phone. Mackie's account requires the Court to find that Respondent brazenly and immediately disregarded Mackie's order in his presence and that Mackie said nothing more to him before entering the stationhouse. This scenario is highly questionable. On the other hand, Respondent's testimony that he inadvertently pulled his phone out as he fumbled to access his memo book while wearing special detail pants that contained less pockets than his usual uniform pants is more plausible. As such, Respondent is found Not Guilty of Specification No. 1.

**Specification No. 2 – Speaking Loudly and Aggressively to Captain Mackie**

Preliminarily, it must be noted that Respondent stands charged not simply with making a discourteous comment to Mackie. Rather, Respondent is charged with "raising his voice in a loud and aggressive manner" toward Mackie. The tribunal finds that the Department has failed to prove that Respondent spoke to Mackie in a loud and aggressive manner.

Mackie contended that Respondent became "loud and irate" when he directed Pacheco to get the "green paper" for CDs. He further alleged that, in the presence of Pacheco outside the stationhouse, Respondent yelled, "You heard me, Captain, you called me a fucking nigger."

The court found Pacheco, who at the time of the incident had only been Respondent's supervisor for a short period, to be a neutral and unbiased witness who recounted the events in a straightforward manner. Though she agreed that Respondent had a bit of an attitude and seemed perturbed by Mackie's questioning, she specifically stated Respondent "didn't yell" and that his tone was "normal" when he spoke with Mackie in the office. She also characterized Respondent's tone outside the precinct in reference to the slur allegation as "normal." Finally, Pacheco confirmed that she did not hear Respondent raise his voice "[a]t any point" on the day in question (Tr. 49-50, 52, 65, 83). Given her proximity to Respondent and Mackie at the times where he was alleged to have taken a loud, aggressive tone and her consistent testimony that he spoke in a normal tone, the Court finds Respondent Not Guilty of Specification No. 2.

**Specification No. 3- Speaking Loudly and Aggressively to Deputy Inspector Maloney and Refusing to Acknowledge His Presence**

Here, Respondent is charged with "rais[ing] his voice in a loud and aggressive manner" toward Maloney and refusing to acknowledge his presence. There is simply no evidence supporting the first part of the specification. Forgione testified that Respondent spoke to Maloney in a "low tone" and Maloney himself testified that Respondent did not yell, speaking in "more [of a] dismissive and annoyed voice than . . . a loud and screaming and yelling voice" (Tr. 133-35, 138, 295). As such, Respondent is found Not Guilty of the first part of Specification No. 3.

As to the latter part of the specification, while no one alleged specifically that Respondent refused to "acknowledge [Maloney's] presence," there is consistent testimony that Respondent was discourteous to Maloney and evasive in responding to his questions. Maloney testified that he had to ask Respondent about the location of his firearms more than half a dozen times and instruct his delegate to have Respondent answer directly. According to Maloney, Respondent stared at him, chewed gum and was "dismissive" and "disrespectful" toward him. Forgione, who had no prior issues with Respondent and in fact had an amicable conversation with him earlier that morning, wholly corroborated Maloney's account. Forgione specifically recalled that Respondent appeared to be "trying to stare [Maloney] down" as Maloney asked questions and that he refused to take a piece of paper that Maloney tried to hand him. He characterized Respondent's behavior as "one hundred percent discourteous" (Tr. 108, 135, 261-62). Taking all of this testimony together, the evidence demonstrated that Respondent behaved in a way that showed total disregard for Maloney's rank as a superior officer. Accordingly, he is found Guilty in Part of discourtesy as set forth in Specification No. 3.



**Specification No. 4 – Failure to Maintain Activity Log**

Respondent admitted that he failed to note in his memo book the time he took his stationhouse security post and that he tried to make this entry after Mackie asked to see his memo book (Tr. 321, 336). As such, Respondent is found Guilty as charged.

**Specification No. 5 – Being Unshaven in Uniform**

It is uncontested that Respondent's medical excusal note expired on September 23, 2015, four days before his encounter with Mackie, and that Respondent did not have a note on his person as required. Still, Respondent maintained that he had shaved that morning, using an electric razor, asserting that the papal visit detail roster stated everyone had to shave regardless of medical exception. Respondent asserted that Mackie never asked him if he had shaved, only asking if he had a "note," and that he responded to the question asked. Respondent did not inform Mackie that his note recently had expired (Tr. 323, 336-37, 355-58).

Pacheco and Mackie provided a different narrative of the conversation. Pacheco recalled that Mackie specifically pointed out that Respondent "wasn't clean shaven" and Respondent confirmed that "he didn't shave." It was after that exchange that she remembered Mackie inquiring about a note. Similarly, Mackie testified that after noticing "visible stubble" on Respondent's chin, he questioned why he was unshaven and whether he had a Medical Division note (Tr. 18, 50, 166).

Respondent's assertion that he had shaved that morning and never was asked specifically about shaving is contradicted by Pacheco's credible recollection that Respondent told Mackie he had not shaved. Moreover, even if Respondent had shaved and had some residual stubble, the fact is that his medical exception note had expired and he therefore was obligated to comply with the Patrol Guide's mandate that he refrain from "grow[ing] a beard." Respondent's own testimony stated that due to the papal detail, he had to shave in any event. Because Respondent

was not in compliance and no longer was medically exempt, he is found Guilty of Specification No. 5.

### PENALTY RECOMMENDATION

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on January 10, 2005. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Department requested a penalty of 30 suspension days without pay already served and one year of dismissal probation for the five specifications charged. A significantly lesser penalty is called for given that Respondent has been found Guilty of only two specifications charging relatively minor misconduct, and Guilty in Part of just one discourtesy specification. Further, there was no allegation that Respondent used profanity toward or refused to comply with the deputy inspector's orders, and no evidence that he spoke to him in an aggressive tone.

Still, Respondent's evading questions asked by a ranking officer and acting discourteously cannot be taken lightly in this paramilitary organization where being respectful and forthcoming when speaking to supervisors is of the utmost importance.

The charges in this case are somewhat akin to a 2015 disciplinary matter where a nine-year police officer, with no prior disciplinary record, forfeited 7 vacation days for (i) raising his voice toward a supervisor in a discourteous tone, (ii) appearing for duty unshaven, and (iii) failing to record pertinent information regarding an arrest in his Activity Log. The trial commissioner took into account that officer's consistently high performance evaluations, twelve medals, and straightforward testimony at trial in making that penalty recommendation. See *Case No. 2011-5115* (Sept. 10, 2015). Having examined Respondent's personnel record, however, the Court does not find any similarly mitigating factors here.

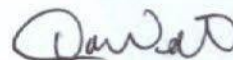
Other disciplinary matters involving discourtesy to supervisors, absent aggravating factors or other significant misconduct, have generally warranted penalties of 10 to 15 vacation days. For example, in *Case No. 2010-2021* (Feb. 19, 2013), a 14-year police officer, with no prior disciplinary record, forfeited 10 vacation days for being discourteous in his tone of voice and demeanor when he addressed a sergeant in the roll call room in front of other officers. More recently, in *Case No. 2015-14337* (June 23, 2016), an 11-year officer, with no record, forfeited 12 vacation days for speaking disrespectfully to two supervisors on two separate occasions, one of which involved the officer leaving the supervisor and slamming the door during their conversation. See also *Case No. 2013-10510* (Mar. 26, 2015) (seven-year police officer with no record forfeited 10 vacation days for discourtesy toward sergeant that chastised him for commenting to motorist after traffic court hearing).

Taking into account the misconduct of which Respondent has been found guilty, the totality of the circumstances surrounding the incident, and recent case precedent, the tribunal recommends that Respondent forfeit 12 suspension days already served, with the remainder of 18 days returned to him.

Respectfully submitted,

**APPROVED**

MAY 22 2017  
  
JAMES P. O'NEILL  
POLICE COMMISSIONER



David S. Weisel  
Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials  
To: Police Commissioner  
Subject: CONFIDENTIAL MEMORANDUM  
POLICE OFFICER WOODY WILLIAMS  
TAX REGISTRY NO. 937743  
DISCIPLINARY CASE NO. 2015-14387

Respondent was appointed to the Department on January 10, 2005. His last three annual performance evaluations are as follows: he received a 3.0 overall rating of "Competent" in 2015 and 3.5 ratings of "Highly Competent/Competent" in 2013 and 2014. He has received two medals for Excellent Police Duty. [REDACTED]

Respondent has no prior formal disciplinary history. He was on modified duty from May 15, 2012, to May 17, 2013, and following his suspension in connection with this matter was again modified on October 27, 2015. Respondent was placed on Level 1 Discipline Monitoring on February 5, 2016, due to the instant charges and specifications. That monitoring remains ongoing.

For your consideration.

David S. Weisel  
Assistant Deputy Commissioner Trials